

Contentious Chamber

Decision on the merits 78/2024 of May 22, 2024

File number: DOS-2022-04697

Subject: Communication and publication of a tenant's payslip in the context of the sale of a real estate property

The Contentious Chamber of the Data Protection Authority, composed of

Mr. Hielke Hijmans, president, and Messrs. Dirk Van Der Kelen and Jelle Stassijns, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as the "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter referred to as the "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X, hereinafter referred to as "the complainant";

The defendants:

Mr. Y1 (hereinafter "the first defendant", and

Y2, hereinafter "the second defendant"; collectively referred to as "the defendants",

both represented by Me Bart Van Besien and Me Ilona Min, whose office is located at 2800 Mechelen, K. De Deckerstraat 20 A.

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I. Facts and procedure

1.

On November 16, 2022, the complainant filed a complaint with the Data Protection Authority against the two defendants.

The complainant rents an apartment of which the first defendant is the owner. In order to conclude the rental agreement, the first defendant requested the complainant's payslip, which was provided by the latter. After some time, the first defendant wished to sell his apartment and engaged the second defendant as a real estate agent for this purpose. In this context, the second defendant prepared a brochure containing information about the apartment. Since the apartment was to be sold rented, certain information regarding the complainant as a tenant was also included in the brochure, including the complainant's full payslip. However, on October 12, 2022, an employee of the first defendant left a copy of the brochure intended for potential buyers in the apartment, which led the complainant to discover that the brochure contained his full payslip. On the same day, the complainant contacted the second defendant about this, who responded to him. On October 17, 2022, the complainant requested the first defendant to delete all his personal data and opposed any future dissemination. On October 21, 2022, the complainant requested via email confirmation from the first defendant that his personal data had been deleted and also requested access to the personal data processed. On the same day, the second defendant confirmed to the complainant that all his personal data had been deleted, apologizing to him. On November 4, 2022, the complainant requested the data protection officer for a list of the information the second defendant had about him as well as information regarding the persons to whom this information had been communicated. The complainant received an 'out of office' message as the data protection officer had recently ceased working for the second defendant. This 'out of office' message provided contact details, including [...]. The complainant therefore sent his request to this email address but claims to have received no response.

2.

On November 21, 2022, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA and was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

3.

On January 5, 2023, the Contentious Chamber decided, under Article 95, § 1, 1° and Article 98 of the LCA, that the file could be processed on the merits.

4.

On January 5, 2023, the concerned parties were informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are

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also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

The deadline for the receipt of the defendants' response conclusions was set for February 16, 2023, that for the claimant's reply conclusions for March 9, 2023, and that for the defendants' reply conclusions for March 30, 2023.

5.

On January 12, 2023, the parties were informed of the adjusted deadlines for submitting their conclusions in light of the request made by the second defendant due to technical access issues to the case file on the one hand, and the non-delivery of the letter dated January 5, 2023, to the second defendant, on the other hand.

6.

The deadline for the receipt of the defendants' response conclusions was thus set for February 27, 2023, that for the claimant's reply conclusions for March 20, 2023, and that for the defendants' reply conclusions for April 10, 2023.

7.

On February 16, 2023, the Contentious Chamber received the joint response conclusions from the defendants. As a primary matter, the defendants request that the complaint be declared inadmissible due to a mediation clause agreed upon between the parties, under which only the Arbitration and Mediation Chamber is competent to rule on disputes between the parties. On the merits, the defendants then argue that, firstly, the communication of the personal data of the first defendant to the second defendant would constitute a lawful further processing in the context of the collection of the payslip by the first defendant based on Article 6.1.b) of the GDPR. Furthermore, the defendants assert that this processing also serves the legitimate interest of the first defendant, the claimant, and potential buyers, in the context of the sale of the apartment. The defendants argue in their conclusions that this personal data was included in the brochure due to a regrettable human error. Secondly, the personal data of the claimant is processed solely for determined, explicit, and legitimate purposes. The further processing must be situated in this context, namely the continuation of the rental after the sale of the apartment. Thirdly, the processing was adequate, relevant, and proportionate, given that it is commonly accepted that the presentation of several payslips constitutes an appropriate means for landlords and real estate agents to know the income of tenants. Fourthly, the personal data is accurate and up-to-date. Finally, the personal data has not been retained longer than necessary to achieve the purpose of the processing.

8.

On March 11, 2023, the Contentious Chamber received the reply conclusions from the claimant. As a primary matter, the claimant argues that the complaint is admissible because the parties to the present proceedings are not (all) the same parties to the lease on the one hand, and because the disputed processing is not related to the lease on the other hand. As a subsidiary matter, the claimant argues that this is a structural issue and not a human error. According to the claimant, this is evident from the following elements. Firstly, at the time of submitting his conclusions, the claimant has not yet received a response to his access request dated October 21, 2023. Secondly, the data protection officer had already left his position since June 17, 2022. Thirdly, the emails sent to the addresses of the data protection officer have gone unanswered. The responses that the claimant receives, on the other hand, are incomplete. Finally, the claimant argues that the processing is unlawful and that the payslip is outdated as it does not concern the claimant's current employer.

9.

On March 30, 2023, the Contentious Chamber received the defendants' reply conclusions, in which they express their intention to avail themselves of the opportunity to be heard, in accordance with Article 98 of the LCA. The defendants then reiterate their positions as set out in the response conclusions.

10.

On April 21, 2023, the parties were informed that the hearing would take place on June 2, 2023.

11.

On June 2, 2023, the parties were heard by the Contentious Chamber.

12.

On June 6, 2023, the minutes of the hearing were submitted to the parties.

13.

On June 11, 2023, the Contentious Chamber received some remarks from the claimant regarding the minutes, which it decided to include in its deliberation.

14.

On June 13, 2023, the Contentious Chamber received some remarks from the defendants regarding the minutes, which it decided to include in its deliberation.

15.

On February 20, 2024, the Contentious Chamber informed the second defendant of its intention to impose an administrative fine as well as the amount thereof, in order to give the second defendant the opportunity to defend itself before the sanction is actually imposed.

16.

On March 8, 2024, the Contentious Chamber received the response from the second defendant regarding the intention to impose an administrative fine, as well as the amount thereof.

II. Rationale

II.1. Jurisdiction of the Contentious Chamber

17.

According to the defendants, the Contentious Chamber is not competent to hear the complaint. They argue that the lease contract contains a clause in Article 18 stating that the parties would first submit any dispute between them to the mediation of the Arbitration and Mediation Chamber, which the claimant has not done. Therefore, the defendants assert that the complaint is inadmissible.

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18.

The complainant responds that the mediation clause in the lease agreement indeed stipulates that only the Arbitration and Mediation Chamber is competent to resolve disputes between the parties. The complainant emphasizes that this conclusion does not apply to the present dispute because the second defendant is not a party to the lease in question and the present dispute is not a lease-related dispute.

19.

The Contentious Chamber does not follow the reasoning of the defendants and refers in this regard to recital 141 of the GDPR, worded as follows:

“Any data subject should have the right to lodge a complaint with a single supervisory authority, in particular in the Member State where they have their habitual residence, and have the right to an effective judicial remedy in accordance with Article 47 of the [Charter of Fundamental Rights of the European Union] if they consider that their rights under this Regulation have been infringed or if the supervisory authority fails to act on their complaint, rejects it, or dismisses it, in whole or in part, or if it does not act when action is necessary to protect the rights of the data subject. [...]”

20. Article 77, paragraph 1 of the GDPR states that:

“Without prejudice to any other administrative or judicial remedy, any data subject has the right to lodge a complaint with a supervisory authority, in particular in the Member State where they have their habitual residence, their place of work, or the place where the infringement has occurred, if they consider that the processing of personal data concerning them infringes this Regulation.”

21.

The Contentious Chamber further refers to the recent Schufa ruling, case C-26/22 and C-645/22 of the Court of Justice of the European Union (hereinafter: “Court of Justice”) dated December 7, 2023, in which the Court of Justice consolidated and clarified its previous case law regarding complaint procedures:

[...] in accordance with Article 8, paragraph 3, of the Charter as well as Article 51, paragraph 1, and Article 57, paragraph 1, under a), of the GDPR, national supervisory authorities are responsible for monitoring compliance with Union rules regarding the protection of natural persons with regard to the processing of personal data [...]

In particular, under Article 57, paragraph 1, under f), of the GDPR, each supervisory authority is required, within its territory, to handle complaints that any person is entitled to lodge in accordance with Article 77, paragraph 1, of this Regulation when they consider that the processing of personal data concerning them constitutes a violation of the said Regulation, and to examine the subject matter as necessary. The supervisory authority must process such a complaint with all due diligence [...]

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It follows [...] that the complaint procedure, which is not akin to that of a petition, is designed as a mechanism capable of effectively safeguarding the rights and interests of the data subjects.

22.

In summary, the right to lodge a complaint with a data protection authority and the obligation of that authority to process this complaint are part of the fundamental right to data protection guaranteed by the Charter of Fundamental Rights of the European Union. Such a right cannot be contractually restricted.

23.

Furthermore, conditioning access to the supervisory authority on prior mediation is not compatible with the aforementioned provisions and purposes of the GDPR. Despite the potential competence of the Mediation and Arbitration Chamber, such a mediation clause does not therefore exclude the competence of the Data Protection Authority as a supervisory authority. Consequently, the complaint is admissible.

II.2. Lawfulness of processing - Article 5.1.a) in conjunction with Article 6.1 of the GDPR and the principle of purpose limitation as defined in Article 5.1.b) of the GDPR in combination with the non-compliance with Article 5.1.c) (data minimization) and the obligation to inform under Articles 13 and 14 of the GDPR.

24.

It is the responsibility of the Contentious Chamber to assess whether the processing by the first defendant and subsequently by the second defendant is compliant with the principle of lawfulness and therefore whether the contested processing is based on one of the grounds set out in Article 6.1 of the GDPR, read in conjunction with the principle of transparency, the principle of purpose limitation, and the principle of data minimization.

II.2.1. Position of the complainant

25.

Regarding the communication of the payslip by the first defendant to the second defendant, the complainant objects that he only communicated the payslip in question to the first defendant for the purpose of proving his solvency in the context of concluding the lease agreement. The complainant states that he did not give permission for these data to be used otherwise.

II.2.2. View of the defendants

26.

The defendants argue that the complainant provided certain personal data to the first defendant, in his capacity as the owner and lessor of the apartment in question, for the purpose of entering into the lease. The defendants assert that this processing is compliant with Article 5.1.a), b), and c) and Article 6.1 of the GDPR. When the apartment was put up for sale, the first defendant communicated this personal data to the second defendant in order to continue renting the apartment after its sale.

1 CJEU, December 7, 2023, SCHUFA Holding, C-26/22 and C-645/22, ECLI:EU:C:2023:958, para.

55-58.

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The defendants wished to provide certainty to the investor/potential buyer that the tenant could indeed pay the rent. Consequently, the communication of personal data by the first defendant to the second defendant constitutes an authorized further processing, as it arises from personal data that was lawfully obtained by the first defendant based on Article 6.1.b) of the GDPR (the processing is necessary for the performance of a contract to which the data subject is a party). Furthermore, the defendants argue that the publication of the personal data in question in the brochure also constitutes lawful processing since it occurred in the legitimate interest of the first defendant, potential buyers, and the complainant, namely in the context of the sale of the apartment. The defendants assert that it is important for a potential buyer to know who the tenant occupying the apartment is at the time of sale and whether that tenant will be able to pay the rent.

II.2.3. Assessment by the Dispute Chamber

27.

Based on the complaint, the Dispute Chamber notes that the complainant raises two issues: on the one hand, the first defendant transmitted the complainant's payslip to the second defendant (hereinafter: the first disputed processing) and on the other hand, the second defendant included this payslip in a brochure intended for potential future buyers (hereinafter: the second disputed processing). It is the responsibility of the Dispute Chamber to assess whether these two disputed processes are lawful. The communication of the payslip by the complainant to the first defendant is not part of this decision, as the complaint did not concern this aspect.

28.

Article 6 of the GDPR requires that any processing be based on a lawful basis. This means that the data controller cannot begin or continue processing data without relying on one of the lawful bases listed in Article 6.1 of the GDPR, which embodies the principle of lawfulness set out in Article 5.1 a) of the GDPR.

The communication of personal data by the first defendant to the second defendant (the first disputed processing)

29.

As already explained, the complainant had communicated his payslip to the first defendant as the owner of the apartment in order to conclude the lease agreement. What the complainant opposes is the subsequent communication of information about his salary to the second defendant, namely the real estate agency. The second defendant states: "The defendants believe that the further processing can still fall within this context, namely in the continuation of the lease following the sale of the apartment."²

2 Defendant's reply conclusions, p. 5.

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30. As it has already had the opportunity to specify in other decisions, the Contentious Chamber recalls here that the processing of personal data carried out for purposes other than those for which the personal data were initially collected can only be authorized in accordance with Article 5.1.b) of the GDPR if it is compatible with the purposes for which the personal data were initially collected.

31.

In light of the criteria set out in Article 6.4. of the GDPR and Recital 50, it is necessary to verify whether the subsequent processing – namely, in this case, the communication of the information in question to the real estate agency in order to inform it about the tenant's creditworthiness – is or is not compatible with the purpose of the initial processing.

32.

In this case, the Contentious Chamber finds that this subsequent communication pursues a different purpose from the initial purpose, which was to receive information about the tenant's creditworthiness and to process it with a view to concluding the lease agreement between the complainant and the first defendant (Article 6.1.b) of the GDPR).

33. In this regard, only certain individuals are, in the exercise of their specific function, authorized to

receive this information, taking into account their sensitivity, such as financial data and the National Register number, and their impact on the individual concerned, as well as the principle of data minimization (proportionality – Article 5.1.c) of the GDPR).

34. The Contentious Chamber concludes in this case that this subsequent communication is not compatible with the initial purpose. This communication does not fall within the reasonable expectations of the individual concerned. Firstly, the complainant was not informed by the first defendant of the recipients or categories of recipients of the personal data in accordance with Article 13.1.e) of the GDPR. Given the specific context in which the processing of the complainant's information takes place, namely the lease agreement concluded between the complainant, as the tenant, and the first defendant, as the landlord, as well as the nature of the information, namely the payslip which also includes the National Register number, the individual concerned – in this case, the complainant – cannot expect that this data would be communicated to other persons than those who are parties to the lease agreement or who need to be informed.

3 See, for example, Decision 115/2022 of the Contentious Chamber and the references cited.

4 Recital 50 of the GDPR: [...] To establish whether the purposes of subsequent processing are compatible with those for which the personal data were initially collected, the data controller, after having complied with all the requirements related to the lawfulness of the initial processing, should take into account, among other things: any link between these purposes and the purposes of the intended subsequent processing; the context in which the personal data were collected, in particular the reasonable expectations of the individuals concerned, based on their relationship with the data controller, regarding the subsequent use of such data; the nature of the personal data; the consequences for the individuals concerned of the intended subsequent processing; and the existence of appropriate safeguards both in the context of the initial processing and the intended subsequent processing.

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by their function. On the contrary, it can be assumed that this data will remain confidential.

35. It follows that there is no question of subsequent processing being compatible, so a distinct legal basis was required for the said communication to be qualified as lawful.

36. The processing of personal data, including incompatible subsequent processing as in this case, is indeed lawful only if it is based on a specific legal basis. Recital 50 of the GDPR is explicit in this regard. These distinct legal bases are those defined in Article 6.1 of the GDPR.

37.

The second defendant seems to invoke Article 6.1(b) of the GDPR as a legal basis. The second defendant claims that the communication of this payslip was intended to ensure the continuity of the lease contract for the complainant. The defendants thus wished to provide certainty to the potential investor that the tenant could indeed pay the rent. Consequently, the defendants argue that the communication of this personal data can be considered a legitimate subsequent processing under Article 6.1(b) of the GDPR ("[The defendants believe that the subsequent processing must still fall within this framework, namely the continuation of the lease following the sale of the apartment]"6).

38. Article 6.1(b) of the GDPR provides a legal basis for the processing of personal data if "the processing is necessary for the performance of a contract to which the data subject is party or for the performance of pre-contractual measures taken at the request of the data subject."

39. A valid recourse to this legal basis therefore requires that the processing is necessary for the performance of this specific contract with the data subject.

40. The Contentious Chamber emphasizes that the disputed communication of the payslip between the first defendant and the second defendant took place within the framework of the contract between these parties, which did not include the complainant. The first condition for a valid application of Article 6.1(b) of the GDPR is therefore not met.

41.

The Contentious Chamber thus considers that there is a violation of Article 5.1(a), (b), and (c) in conjunction with Article 6.1, combined with Article 13.1(e) of the GDPR.

5 Recital 50 of the GDPR: The processing of personal data for purposes other than those for which the

personal data were initially collected should only be permitted if it is compatible with the purposes for which the personal data were initially collected. In this case, no distinct legal basis from that which allowed the collection of the personal data is required. [...]

6 Defendant's reply conclusions, p. 5.

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The communication of personal data by the first defendant to potential buyers (the second disputed processing)

42.

The second processing denounced by the complainant is the publication of his payslip by the second defendant in a brochure containing information about the property for sale.

43. The defendants argue that the processing took place in the legitimate interest of both the potential buyer, the complainant as tenant, and the second defendant as landlord in the context of the sale of the apartment.

44. Article 6.1(f) of the GDPR states that processing is lawful if "the processing [is] necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, unless the interests or fundamental rights and freedoms of the data subject which require protection of personal data prevail, in particular when the data subject is a child."

45. The case law of the Court of Justice of the European Union requires that recourse to Article 6.1(f) of the GDPR meets three cumulative conditions, namely, first, the pursuit of a legitimate interest by the data controller or by the third parties to whom the data are communicated, second, the necessity of processing the personal data for the realization of the pursued legitimate interest, and third, the condition that the rights and fundamental freedoms of the data subject regarding the protection of personal data do not prevail⁷.

46. The data controller must, in other words, demonstrate that:

- a. the interests it pursues with the processing can be recognized as legitimate (the 'purpose test');
- b. the intended processing is necessary to achieve those interests (the 'necessity test');
- c. the balancing of these interests against the interests, freedoms, and fundamental rights of the data subjects weighs in favor of the data controller or a third party (the 'balancing test').

47.

The Contentious Chamber will subsequently verify whether these three cumulative conditions are met so that the second defendant can invoke Article 6.1(f) of the GDPR as the legal basis for the processing of the complainant's personal data in the sales brochures.

7 CJEU, Judgment of May 4, 2017, Rīgas Satiksme, C-13/16 ECLI:EU:C:2017:336, para. 28, and CJEU, Judgment of December 7, 2023, Joined Cases C-26/22 and C-64/22, Schufa, ECLI:EU:C:2023:958, para. 74.

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i)

The Purpose Test

48. First, the Contentious Chamber must verify whether the interests pursued by the processing are legitimate. The second defendant believes that it is important for a potential buyer to know who the tenant occupying the apartment is at the time of the purchase of the property. It is especially important to know whether the tenant will be able to pay the rent. The defendants argue that the processing of personal data was also in the interest of the complainant himself, namely to allow the continuation of the lease after the planned sale of the apartment.

49. The Contentious Chamber considers that these purposes can in themselves be regarded as falling under a legitimate interest, with the effect that the first condition is met.

ii)

The Necessity Test

50. Personal data processing based on legitimate interest must be necessary in the sense given to that term by (among others) the Court of Justice. In its Riga judgment, the Court of Justice emphasizes that the term "necessity" must be interpreted strictly. This test is linked to the principle of purpose limitation set out in Article 5.1.b) of the GDPR and the principle of data minimization enshrined in

Article 5.1.c) of the GDPR. Thus, the proposed processing activity is not permitted when less intrusive measures are possible to achieve the purpose of the processing, and only personal data that is necessary, adequate, and relevant may be processed for the purpose(s).

51. The Contentious Chamber notes that the complainant's payslip may provide insight into the complainant's income and may give the potential new landlord of the apartment in question an overview of the tenant's financial capacity to meet his contractual payment obligations. The Contentious Chamber therefore concludes that a violation of the necessity principle is not established.

8 See Opinion 06/2014, pp. 26 et seq. on the notion of legitimate interest pursued by the data controller within the meaning of Article 7 of Directive 95/46/EC (WP217), where a distinction is made between a purpose and an interest: "The notion of 'interest' and that of 'purpose', mentioned in Article 6 of the directive, are closely related but nonetheless distinct. In data protection, the 'purpose' is the specific reason for which the data is processed: the aim or intention of their processing. The interest, on the other hand, is the broader stake pursued by the data controller, or the benefit it derives – or that society could derive – from the processing."

9 CJEU, Judgment of December 16, 2008, *Heinz Huber v. Federal Republic of Germany*, C-524/06, ECLI:EU:C:2008:724, para. 52.

10 CJEU, Judgment of May 4, 2017, *Rīgas Satiksme*, C-13/16 ECLI:EU:C:2017:336, para. 30.

11 Opinion WP29 No. 03/2013 on purpose limitation of April 2, 2013, p. 15.

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iii)

The Balancing Test

52.

Finally, in order to invoke legitimate interest, a balancing must be conducted between the interest of the data controller and the fundamental freedoms and rights of the data subjects. The balancing depends on the particular circumstances of a specific case and the rights of the complainants under Articles 7 and 8 of the Charter of Fundamental Rights of the European Union concerning the protection of private life and data protection. In practical terms, it is necessary to verify what the impact of the processing is on the data subject(s) and whether they are not disproportionately affected.

53. In this context, the interests of the potential buyer, the first defendant, and the seller/lessor, as well as the interest of the complainant as a tenant, must be weighed. According to Recital 47 of the GDPR, the existence of a legitimate interest should be subject to careful assessment. To determine whether the legitimate interest outweighs the interest or the fundamental freedoms and rights of the data subject, it is particularly important to take into account the reasonable expectations based on their relationship with the data controller, as well as the consequences of the processing for the data subject.

54. The Contentious Chamber finds that it is not within the reasonable expectations of the complainant that their salary slip be fully published in the sales brochure. In this assessment, the Contentious Chamber first takes into account the lack of information provided to the complainant, which should have allowed them to form an idea of the scope or duration of the processing. When personal data has not been collected from the data subject, the data controller must inform them of the purposes for which the personal data is intended as well as the legal basis for the processing (Article 14.1.c) of the GDPR). When the processing is based on Article 6.1.f) of the GDPR, the data subject must be informed of the legitimate interests pursued by the data controller or by a third party (Article 14.2.b) of the GDPR). This information must be provided within a reasonable timeframe, but no later than one month after obtaining the personal data, taking into account the particular circumstances in which the personal data is processed. Therefore, the second defendant should have informed the complainant of the purposes and legal basis of the processing, as well as the legitimate interest pursued. However, it is not demonstrated that the complainant was informed by the second defendant within the appropriate timeframe after the collection of the personal data regarding the invoked legitimate interest.

12 CJEU, Judgment of November 24, 2011, *Asociación Nacional de Establecimientos Financieros de Crédito*, C-468/10 and C-469/10, EU:C:2011:777, para. 51; EDPB Guidelines 3/2019, para. 32-35.

13 WP29, Opinion 06/2014 on the concept of legitimate interest, p. 41.

14 EDPB Guidelines 3/2019, para. 36.

15 CJEU, Judgment of December 7, 2023, Schufa, Joined Cases C-26/22 and C-64/22, ECLI:EU:C:2023:958, para. 78.

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to process his personal data. Given that breaches have already been observed regarding the defendant's obligation to inform, the Contentious Chamber must note that the complainant's reasonable expectations do not include the publication of his collected personal data in sales brochures.

55. Regarding the complainant's reasonable expectations, the Contentious Chamber further notes that the complainant indicates that this payslip is no longer accurate as he is now working for another employer. The defendants argue that the personal data in question was sufficiently correct and current. The complainant's previous and current employers are related entities, and the financial situation appears to be similar. In this regard, the defendants refer to the complainant's email sent to the first defendant, which states: "[...] with a permanent contract at [the current employer], with similar, slightly better conditions." The Contentious Chamber believes that the personal data on the payslip was current in the initial context with the initial purpose of concluding the lease, but that this context and purpose have changed, such that the complainant could not reasonably expect that the personal data would be used for this purpose.

56. The Contentious Chamber concludes that the complainant, given the high activity in the housing market, provided his payslip to the first defendant in order to enter into the lease agreement in question. The complainant could therefore not expect that his payslip would subsequently be transferred to the second defendant, with whom the complainant had no relationship, and that the latter would then publish this data in a sales brochure that would be presented to third parties, with whom the complainant also had no relationship. Given that this data also includes the National Register number and financial data, the data subject - the complainant - cannot expect that his data would be disclosed on a larger scale and thus not only to those who need to know it, such as the landlord. The Contentious Chamber emphasizes that the relevance of the payslip as a guarantee of the complainant's solvency as a tenant diminishes as there have always been timely payments in execution of the lease agreement. In the same vein, the EDPB believes that data subjects cannot be surprised regarding the purpose of the processing of their personal data.¹⁶

57.

Furthermore, processing must always be proportional. For this purpose, there must be substantial and compelling reasons that prevail over the interests, rights, and freedoms of the data subjects. A balancing must be carried out between legitimate interests.

16 European Data Protection Board (EDPB), Guidelines on Transparency under Regulation (EU) 2016/679, point 45,

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advanced, namely the sale of the rented real estate, and the right to the protection of personal data of the complainant. The Contentious Chamber concludes that although the initial purpose of the processing is legitimate, the publication of the complainant's entire payslip is disproportionate, resulting in the third condition for a valid application of Article 6.1.f) of the GDPR not being met, and furthermore, there is a violation of the principle of purpose limitation (Article 5.1.b) of the GDPR) and the principle of data minimization (Article 5.1.c) of the GDPR).

58. The Contentious Chamber deduces from the above that the second defendant acted in violation of Articles 5.1.a), b), c) and 6.1 of the GDPR, combined with the information obligation of Articles 14.1.c) and 14.1.2.b) of the GDPR, given that the contested processing does not pass the balancing test regarding the publication of the complainant's complete payslip in sales brochures intended for potential buyers and given that the complainant was not timely informed by the second defendant regarding this processing.

II.3. Regarding the right of access and the right to erasure of data

II.3.1. Position of the complainant

59. In his conclusions, the complainant refers to his email of October 21, 2022, to the second

defendant in which he requested the following: "Under the legislation, 'right of access (Article 15 of the GDPR)', please also inform me of all persons to whom his personal data has been unlawfully provided." In response to this request, the complainant was informed that his personal data had already been deleted following his data erasure request dated October 21, 2022, with the effect that the second defendant could no longer respond to the access request. The complainant argues that the apartment had not been sold after October 21, 2022, so it was not possible that all information on potential candidates had already been deleted. The complainant asserts that, even if the source files were deleted, it was certainly still possible, in his view, to answer the question of who had received the information. On November 17, 2022, the second defendant communicated that he would know no more about a potential sale than the following day, and on November 29, 2022, the second defendant communicated that he had signed a preliminary agreement with a buyer. Hence the complainant's assertion that as of October 21, 2022, there were still several potential buyers whose contact details should still be known and to whom this brochure had been communicated. The complainant states that this indicates a structural problem at the level of the second defendant regarding the execution of the rights of the data subjects.

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II.3.2. View of the defendants

60. The defendants argue that the chronology of the complainant's requests is as follows:

- Email from the complainant to the second defendant dated October 17, 2022: This was a request for the deletion of all personal data, not a request for access to personal data or their potential dissemination: "I would like to ask you to delete all personal data concerning me for which you have not requested my consent to retain or share. (etc.)"
- Email from the complainant to the second defendant dated October 21, 2022: This was a request for confirmation that "documents" had been deleted and for details regarding the "documents" that had been deleted. It was a request to communicate all persons to whom the personal data had been provided. It was also requested to provide the contact details of the data controller.
- Response from the second defendant to the complainant dated October 21, 2022 (the same day; 4 days after the first request): This email was the confirmation that everything had been deleted: "First of all, I would like to apologize for the incident. It goes without saying that all documents related to the GDPR have been deleted from our system." Since everything had been deleted (based on the first request of October 17, 2022), it was no longer possible, as of October 21, 2022, to communicate which personal data had been provided to whom.
- Email from the complainant to the second defendant dated November 4, 2022: This email had been sent to a different email address. It is a confirmation by the complainant that the personal data has been deleted, but also that no response has been provided to the other two requests, namely obtaining a list of the processed data and obtaining information about the recipients of that data.
- Email from the complainant to the second defendant dated November 4, 2022: This email had been sent to [email address 2], [email address 3], and [email address 4]. This is the transfer of the previous request after receiving an automatic response. The data protection officer of the first defendant had resigned shortly before, resulting in the sending of an "out-of-office" response (mentioning other email addresses).

61. The second defendant therefore argues that he reacted within the month following the complainant's first request to delete his personal data (more precisely, within 4 days: request sent on October 17, 2022, and response sent on October 21, 2022). Given that the personal data had been

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effectively deleted after the first deletion request, the second respondent would no longer have been able to respond to subsequent access requests. The second respondent would no longer have been able to communicate which personal data of the complainant had been processed because at that time, no personal data was being processed. The personal data had indeed already been deleted, following the complainant's deletion request.

II.3.3. Assessment by the Dispute Chamber

Right to erasure

62.

The Dispute Chamber notes that on October 17, 2022, the complainant requested the second respondent to delete all personal data concerning him.

The second respondent having not (yet) responded to this request, the complainant reiterated this request for data deletion on October 21, 2022, asking to specify which documents had been deleted and, furthermore, to provide him with a record of all recipients of the personal data concerning him and the documents containing his personal data that had been deleted.

63. The complainant's first request therefore concerned a request for the deletion of data, in accordance with Article 17 of the GDPR. Under Article 17.1.d) of the GDPR, the data subject has the right to obtain from the data controller the erasure, without undue delay, of personal data concerning him. The data controller is obliged to erase such personal data when it has been processed unlawfully. The Dispute Chamber refers to section II.2.3. of this decision in which it found that the processing of personal data by the second respondent was unlawful. Consequently, the complainant has the right to obtain from the second respondent the erasure of the personal data in question.

64. Article 19 of the GDPR further provides that the data controller must notify each recipient to whom the personal data have been communicated of any erasure of personal data carried out in accordance with Article 17.1 of the GDPR, unless such communication proves impossible or requires disproportionate effort.

65. Under Article 12.3 of the GDPR, the data controller provides the data subject with information on the measures taken following a request made in

17 Article 19: "The data controller notifies each recipient to whom the personal data have been communicated of any rectification or erasure of personal data or any restriction of processing carried out in accordance with Article 16, Article 17, paragraph 1, and Article 18, unless such communication proves impossible or requires disproportionate effort. The data controller provides the data subject with information on these recipients if the data subject requests it."

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application of Articles 15 to 22 inclusive of the GDPR, as soon as possible and in any case within one month from the receipt of the request. The Contentious Chamber notes that the second respondent responded to the request for data erasure on October 21, 2022, which is four days after the first request for data erasure. In this response, the second respondent confirmed that the personal data of the complainant had been erased. The Contentious Chamber observes that the second respondent does not provide any evidence demonstrating that they informed the complainant about the follow-up regarding the obligations arising from Article 19 of the GDPR.

Right of access

66. The Contentious Chamber draws attention to the fact that on October 21, 2022, in addition to the aforementioned request for data erasure, the complainant also submitted a request for access to the second respondent. The complainant wishes to know which "documents" have been deleted and makes a request for access to all persons to whom personal data has been unlawfully disclosed.

67. Regarding the right of access, the Contentious Chamber recalls that this right is one of the major requirements of the right to data protection. It constitutes the "gateway" that allows the exercise of other rights conferred by the GDPR to the data subject, such as the right to rectification, the right to erasure, and the right to restriction of processing.

68. As stated in Recital 63 of the GDPR, this right of access has the primary objective of allowing the data subject to become aware of the processing of their personal data and to verify its lawfulness. By exercising this right of access, the data subject must be able to control in particular that the data concerning them is accurate, but also that it is addressed to authorized recipients. This generally requires that as precise indications as possible be provided. In the Österreichische Post ruling, the Court of Justice states that in order to ensure the effective exercise of all the rights granted by the GDPR to data subjects, the data subject must have, in particular, a right to be informed of the identity

of the specific recipients in cases where their personal data has already been communicated.

18 See the most recent ruling of the CJEU, January 12, 2023, Österreichische Post AG, C-154/21, ECLI:EU:C:2023:3, para. 38, as well as CJEU, July 17, 2014, YS et al., C-141/12 and C-372/12, EU:C:2014:2081, para. 44, and CJEU December 20, 2017, Nowak, C-434/16, EU:C:2017:994, para. 57, see also decision 15/2021 of February 9, 2021, para. 141, and decision 41/2020 of July 29, 2020, para. 47.

19 According to the first sentence of this recital, "[a] data subject should have the right to access personal data which has been collected concerning them [...] in order to be aware of the processing and to verify its lawfulness."

20 See regarding Directive 95/46 the rulings of July 17, 2014, Y.S. et al. (C-141/12 and C-372/12, EU:C:2014:2081, point 44), and December 20, 2017, Nowak (C-434/16, EU:C:2017:994, point 57).

21 See regarding Directive 95/46 the ruling of May 7, 2009, Rijkeboer (C-553/07, EU:C:2009:293, point 49).

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69. The Court of Justice adds that "Such an interpretation is confirmed [...] by reading Article 19 of the GDPR, which provides, in its first sentence, that the data controller shall notify, in principle, each recipient to whom personal data have been communicated of any rectification or erasure of personal data or any restriction of processing and, in its second sentence, that this controller shall provide the data subject with information about these recipients if the data subject requests it."22 Thus, Article 19, second sentence, of the GDPR expressly grants the data subject the right to be informed of the specific recipients of data concerning them by the data controller, within the framework of the obligation of the latter to inform all recipients of the exercise of the rights that this person has under Article 16, Article 17, paragraph 1, and Article 18 of the GDPR23.

70. The Court of Justice has held that Article 15.1.c) of the GDPR should be interpreted in such a way that the right of the data subject to obtain access to personal data concerning them implies the obligation for the data controller, when these data have been or will be provided to recipients, to communicate to the data subject the identity of these recipients24. In the present case, this would imply that the second defendant must communicate the identity of the recipients, i.e., potential buyers, to the complainant.

71. The Court of Justice further adds that as is evident from Recital 4 of the GDPR25, the right to the protection of personal data is not an absolute right. Consequently, the data controller is not obliged to communicate the identity of the recipients if it is impossible to identify these recipients26 or when the data controller demonstrates that the access requests of the data subject are manifestly unfounded or excessive within the meaning of Article 12.5 of the GDPR, in which case the data controller may limit itself to communicating the categories of the recipients in question27.

72. It is therefore the responsibility of the second defendant (1) to analyze whether it is possible to identify the recipients or (2) to demonstrate that the complainant's request is manifestly unfounded.

22 CJEU, January 12, 2023, Österreichische Post AG, C-154/21, ECLI:EU:C:2023:3, para 40.

23 CJEU, January 12, 2023, Österreichische Post AG, C-154/21, ECLI:EU:C:2023:3, para 41.

24 CJEU, January 12, 2023, Österreichische Post AG, C-154/21, ECLI:EU:C:2023:3, para 43.

25 Recital 4 of the GDPR: "The processing of personal data should be designed to serve humanity. The right to the protection of personal data is not an absolute right; it must be considered in relation to its function in society and balanced against other fundamental rights, in accordance with the principle of proportionality. This regulation respects all fundamental rights and observes the freedoms and principles recognized by the Charter, enshrined in the treaties, in particular the respect for private and family life, home and communications, the protection of personal data, freedom of thought, conscience and religion, freedom of expression and information, freedom to conduct a business, the right to an effective remedy and to access to an impartial tribunal, and cultural, religious and linguistic diversity."

26 CJEU, January 12, 2023, Österreichische Post AG, C-154/21, ECLI:EU:C:2023:3, para 48.

27 CJEU, January 12, 2023, Österreichische Post AG, C-154/21, ECLI:EU:C:2023:3, para 49.

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or excessive. In its letter dated October 21, 2022, the second respondent argues that it is impossible to

provide access to the data concerning the specific recipients of the complainant's personal data, given that it had already deleted the personal data, as initially requested by the complainant on October 17, 2022.

In this context, the Dispute Chamber notes that no document has been submitted that would demonstrate whether the personal data has been deleted or not following the repeated request for data deletion and the access request of October 21, 2022. As for the manifestly unfounded or excessive nature of the access request, the Dispute Chamber observes that the second respondent does not invoke this in the present proceedings, nor does it emerge from the documents in the file. 73.

To the extent necessary, and assuming that the personal data had not yet been deleted before the access request dated October 21, 2022, the Dispute Chamber finds that under the aforementioned ruling of the Court of Justice, the second respondent must take concrete action in response to the access request. In accordance with Article 15.3 of the GDPR, this access must be granted through a comprehensible and faithful reproduction (copy).²⁸ However, this modality has some exceptions, within which the Dispute Chamber, particularly for this case, refers to Article 15.4 of the GDPR. Article 15.4 of the GDPR, read in conjunction with Recital 63 of the GDPR, states that this right does not prejudice the rights and freedoms of others. Recital 4 particularly states that: "[...] The right to the protection of personal data is not an absolute right; it must be considered in relation to its function in society and balanced against other fundamental rights, in accordance with the principle of proportionality [...]." Therefore, the exercise of the right of access must also be weighed against other fundamental rights in accordance with the principle of proportionality. The EDPB has provided in²⁹ the guidelines three steps to carry out this balancing. When this balancing under Article 15, paragraph 4 of the GDPR demonstrates that granting the request has negative effects on the rights and freedoms of other participants (step 1), the interests of all participants must be weighed, taking into account the specific circumstances of the case and the likelihood and severity of the risks associated with this data communication. The data controller must attempt to reconcile conflicting rights (step 2), for example by taking appropriate measures to limit the risk to the rights and freedoms of third parties, such as by rendering information relating to third parties unreadable instead of refusing to provide a copy of the personal data. However, if it is impossible to find a compromise, the data controller must...

²⁸ CJEU, May 4, 2023, Österreichische Datenschutzbehörde, C-487/21, ECLI:EU:C:2023:369, para 38.

²⁹ Guidelines 01/2022 on the rights of data subjects — Right of access 2.0., March 28, 2023, available at https://www.edpb.europa.eu/system/files/2024-04/edpb_guidelines_202201_data_subject_rights_access_v2_fr.pdf.

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the controller must decide in a subsequent step which conflicting rights and freedoms prevail (step 3). 74.

In the case at hand, the Contentious Chamber finds that regarding the recipients of personal data, granting a favorable outcome to the access request affects the rights and freedoms of third parties, as their identifying data would be disclosed to the complainant (step 1). It is then necessary to verify whether the conflicting rights can be reconciled. The Contentious Chamber finds that it is impossible to provide the complainant with specific information about the identity of the recipients, namely potential buyers, without this constituting a violation of their rights and freedoms. The omission of this personal data of the recipients indeed results in their identity not being able to be communicated to the complainant. Therefore, no reconciliation is possible. It is thus necessary to decide which conflicting rights and freedoms prevail. In this regard, the Contentious Chamber takes into account that the sales brochure is a paper brochure – and not digital – the extent of its distribution is uncertain and also difficult to determine, given the possibility that not all visitors to the apartment received a brochure. In this regard, the Contentious Chamber also observes that the potential recipients of this brochure are individuals acting in a private context, namely the purchase of real estate. Consequently, the Contentious Chamber believes that the rights and freedoms of the recipients prevail over the

complainant's right of access. In this case, it is the responsibility of the controller to inform the complainant, pursuant to Article 12.4 of the GDPR.

75.

In accordance with the EDPB guidelines on the right of access, data that has already been deleted and is therefore no longer available to the controller, in this case the second defendant, cannot be provided. For the sake of completeness, the Contentious Chamber further specifies that the assessment that, in the present case, the identity of potential buyers should not be disclosed does not prevent the second defendant from having communicated how many potential buyers the brochure containing the complainant's payslip had been given to. None of the parties having raised this issue, the Contentious Chamber decides, however, not to delve into whether this failure to communicate the number of potential buyers could constitute a violation of a provision of the GDPR.

30 Art. 12.4. "If the controller does not respond to the request made by the data subject, it shall inform the data subject without delay and at the latest within one month of receiving the request of the reasons for its inaction and the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy."

31 Guidelines 01/2022 on the rights of data subjects — Right of access 2.0., March 28, 2023, available at https://www.edpb.europa.eu/system/files/2024-04/edpb_guidelines_202201_data_subject_rights_access_v2_fr.pdf.

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76.

In light of the above, the Contentious Chamber concludes that the second defendant has not violated Articles 12, 15, and 17 of the GDPR.

III. Corrective Measures and Sanction

III.1. General Provisions

77.

Pursuant to Article 100 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a dismissal;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings and reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or erasure of data and notification of such to the data recipients;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° refer the case to the public prosecutor of the Brussels Prosecutor's Office, which informs it of the follow-up given to the case;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

III.2. Regarding the first defendant

78.

In accordance with what it has already decided previously in its decision 98/2023, the Contentious Chamber reprimands the first defendant based on Article 100, § 1, 5° of the LCA for unlawfully disclosing the personal data of the complainant to the second defendant, which constitutes a violation of Article 5.1.a), b), and c) in conjunction with Article 6.1 of the GDPR, combined with Article 13.1.e) of the GDPR. Given that the first defendant acted as a private individual and considering the minor nature

of the violation, the Contentious Chamber believes that no additional sanction should be imposed.

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III.3. Regarding the second respondent

79.

Concerning the established violation of Article 5.1.a), b) and c) in conjunction with Article 6.1 of the GDPR combined with Articles 14.1.c) and 14.2.b) of the GDPR regarding the lawfulness of the processing of personal data by the second respondent, the Contentious Chamber decides to impose an administrative fine under the powers granted to it based on Article 83 of the GDPR and Article 100, § 1, 13° of the LCA.

80. The EDPB adopted on May 24, 2023, the Guidelines 04/2022 on the calculation of administrative fines under the GDPR³² (hereinafter: the Guidelines). The Guidelines are directly applicable as they do not provide for a transitional provision for procedures that were already underway at the time of the adoption of the Guidelines. The Contentious Chamber will therefore apply these Guidelines to the present case.

81.

The Guidelines describe a methodology for determining the amount of the fine as follows:

Step 1: Identify the processing activities and violations that need to be assessed

Step 2: Set the starting amount for calculating the fine for the established violations (starting amount);

Step 3: Assess the aggravating and mitigating circumstances that may require adjustment of the amount set in Step 2;

Step 4: Determine the maximum applicable amounts for the violations and whether any increases from the previous step do not exceed these amounts;

Step 5: Determine whether the final amount of the calculated fine is effective, proportionate, and dissuasive, and adjust this amount to these criteria if necessary.

82.

The Contentious Chamber determines the amount of the administrative fine using this methodology.

On February 20, 2024, the Contentious Chamber informed the second respondent, via the sanction form, of its intention to impose an administrative fine of €9,000. On March 8, 2024, the second respondent communicated its response to the sanction form to the Contentious Chamber. This will be examined in more detail below.

III.3.1. Step 1: Identify the processing activities and violations that need to be assessed;

83. In order to determine the starting amount of the fine, it is first necessary, as described in the Guidelines, to examine whether there is one or more behaviors that may be subject to sanction.

32 EDPB - Guidelines 04/2022 on the calculation of administrative fines under the GDPR (V2.1, May 24, 2023), available at https://www.edpb.europa.eu/system/files/2024-01/edpb_guidelines_042022_calculationofadministrativefines_fr_0.pdf.

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84. The Contentious Chamber found that the second respondent could not validly invoke the legal basis of legitimate interest for the publication of the complainant's payslip in the sales brochure.

The Contentious Chamber acknowledged that the purpose pursued, namely the continuation of the lease contract, constituted a legitimate purpose, but that the balancing test required to validly invoke Article 6.1.f) of the GDPR was not met. In its assessment of the balancing test, the Contentious Chamber took into account, among other things, the reasonable expectations of the complainant and the failure to comply with the information requirements under Articles 14.1.c) and 14.2.b) of the GDPR on the part of the second respondent.

85. The Guidelines specify that when it comes to assessing "[the] same processing operation or [related] processing operations," it should be kept in mind that all legal obligations necessary for the processing operations to be carried out in compliance with the laws can be taken into account by the supervisory authority in its assessment of violations, including [...] transparency obligations (e.g., Article 14 of the GDPR). This point is also highlighted by the terms "in the context of the same processing operation or related processing operations," which indicate that the scope of this provision

encompasses any violation related to the same processing operations or related processing operations that may impact them. The term "related" refers to the principle that a single behavior may consist of multiple actions carried out within a unified intent and that are so closely linked contextually (notably regarding the identity of the data subject, the purpose, and the nature), spatially, and temporally that, from an objective standpoint, they would be considered as constituting a coherent single behavior.

86. The Contentious Chamber considered that these circumstances could be regarded as a single behavior giving rise to one or more violations, resulting in the imposition of a single administrative fine.

III.3.2. Step 2: Set the starting amount

87.

As described in the Guidelines, the next step is to set the starting amount of the fine. This starting amount serves as the basis for further calculations in the subsequent steps, where all relevant facts and circumstances are taken into account. The Guidelines indicate that the starting amount is determined using three elements: i) the qualification of the violations under Article 83, paragraphs 4 to 6 of the GDPR; ii) the severity of the violation; and iii) the turnover of the company. These three elements are examined below:

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i)

Qualification of violations under Article 83, paragraphs 4 to 6 of the GDPR

88. As mentioned in the Guidelines, almost all obligations of the data controller are qualified in the provisions of Article 83, paragraphs 4 to 6 of the GDPR. The GDPR distinguishes between two types of violations. On the one hand, there are violations subject to penalties under Article 83, paragraph 4 of the GDPR, which are liable to a maximum fine of 10 million euros (or in the case of an undertaking, 2% of the annual turnover, whichever is higher); on the other hand, there are violations subject to penalties under Article 83, paragraphs 5 and 6 of the GDPR, which are liable to a maximum fine of 20 million euros (or in the case of an undertaking, 4% of the annual turnover, whichever is higher). Through this distinction, the legislator has provided an initial indication in abstracto of the severity of the violation: the more serious the violation, the higher the fine.

89. The Dispute Chamber has already found that following its initial behavior, the second defendant had committed a violation of Article 5.1.a), b) and c) of the GDPR in conjunction with Article 6.1 of the GDPR, combined with the obligation to inform under Articles 14.1.c) and 14.2.b) of the GDPR. The balancing of interests has proven favorable to the rights and freedoms of the complainant, and the defendant cannot validly invoke the legitimate interests of the complainant, the first defendant, or potential buyers as a basis for the processing of data. For a violation of the fundamental principles of processing in accordance with Articles 5 and 6 of the GDPR, as well as the obligation to inform in accordance with Article 14 of the GDPR, the Dispute Chamber may, based on Article 83.5.a) of the GDPR, impose an administrative fine of up to 20 million euros or, for an undertaking, up to 4% of the total global annual turnover of the previous financial year, whichever is higher. A violation of the aforementioned provisions therefore gives rise to the highest fines, in accordance with Article 83.5 of the GDPR.

ii)

Severity of the violation in the present case

90. In order to determine the severity of the violation, the Guidelines provide that account should be taken of the nature, gravity, and duration of the violation, as well as the deliberate or negligent character of the violation and the categories of personal data concerned.

91.

Nature of the violation - The Guidelines provide that the supervisory authority may consider the interest that the breached provision aims to protect and the importance of that provision within the framework of data protection. Regarding lawfulness, the EDPB states that there are six bases for lawful processing of personal data. When undertaking activities that involve the processing of personal data, the data controller must always take the time to examine what

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would be the appropriate legal basis for the intended processing. The applicable legal basis also

influences the applicable rights of the data subjects or the applicable information obligations. Violations of these fundamental principles thus constitute serious breaches, subject to the highest administrative fines provided for by the GDPR. Consequently, the Contentious Chamber concludes that legality occupies a central place in the framework of data protection and therefore justifies the imposition of a fine.

92.

Nature, severity, and duration of the violation (Article 83.2.a) of the GDPR) - Regarding the severity of the violation, the Contentious Chamber observes that the principle of legality (Article 5.1.a) and Article 6 of the GDPR), together with the principles of purpose limitation (Article 5.1.b) of the GDPR), data minimization (Article 5.1.c) of the GDPR), and transparency (Article 14 of the GDPR) are fundamental principles of the protection guaranteed by the GDPR.

93. Concerning the nature of the processing, the Contentious Chamber notes that the disputed processing took place in the context of a professional activity. The Contentious Chamber indicated in the sanction form that it believed the violation should be assessed more severely given that the second respondent acted in a professional capacity. In its response to the sanction form, the second respondent states, regarding the nature of the violation, that it does not deny that the processing was part of a professional activity and does not attempt to minimize the nature of the violation. However, the second respondent requests the Contentious Chamber to also sufficiently consider the fact that the processing was not intended to monitor the complainant, nor to analyze the personal characteristics of the complainant, nor to take measures that would have negative consequences for the complainant. The Contentious Chamber includes this argument in its analysis of the nature of the incident and, considering that the processing did not actually take place for the purpose of monitoring the complainant, nor for the purpose of assessing their personal characteristics, nor with a view to taking measures that would have negative consequences for the complainant, on the one hand, and considering the professional nature of the processing, on the other hand, it assesses that the severity of the violation is moderate.

94. Regarding the purpose of the processing, the Contentious Chamber finds that the processing aimed at the sale of the real estate as a rented property, and therefore not the monitoring of the complainant, nor the analysis of the personal characteristics of the complainant, nor the taking of measures that would have negative consequences for the data subject. However, the Contentious Chamber observes that the stated purpose of the disputed processing

33EDPB) Guidelines 5/2020 on consent under Regulation 2016/679 (May 5, 2020), p. 5

https://www.edpb.europa.eu/sites/default/files/files/file1/edpb_guidelines_202005_consent_fr.pdf

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could also have been achieved without the processing of the personal data in question. The processing of personal data is not a primary activity of the second defendant as a real estate agency, but it is an important ancillary activity in the fulfillment of the main task of selling or renting real estate. Therefore, the Disciplinary Chamber indicated in its sanction form that it had to give more weight to the violations of the GDPR arising from these ancillary activities. In its response to the sanction form, the second defendant requests the Disciplinary Chamber to take into account the fact that these processes, like the disputed processing, do not constitute a primary activity, given that the degree of "importance" or "necessity" of this ancillary activity is rather subjective. The second defendant also requests, regarding the purpose of the processing, that it be taken into account that the processing took place in a context where efforts were being made to achieve a positive outcome for the data subject, namely the continuation of the rental of the apartment. After evaluating the arguments put forward by the second defendant, the Disciplinary Chamber believes it must nonetheless give more weight to this factor than a simple neutral approach. In this context, the Disciplinary Chamber emphasizes that the second defendant must very regularly process personal data, either of buyers, sellers, potential tenants, as well as potential interested visitors (potential buyers) of the real estate in question. Without this processing, the second defendant would indeed not be able to carry out its primary activity, namely the sale of real estate. Therefore, the Disciplinary Chamber considers that the processing of personal data constitutes an essential activity, which is why it gives more weight to this

factor.

95. Regarding the scope of the processing, in order to determine whether personal data is processed on a large scale, the EDPB guidelines on data protection impact assessment recommend taking into account not only the number of data subjects but also the volume of data, the duration or permanence of the data processing, as well as the geographical extent of the processing.³⁴ The present case concerns the personal data of a single data subject, namely the complainant, and it does not appear from the file that other data subjects are affected by this processing or similar processing. No documents or evidence have been submitted that would allow the Disciplinary Chamber to determine whether these brochures would have been disseminated on a large scale. The volume of personal data is rather low, namely a single

34 Article 29 Working Party on Data Protection, Guidelines on Data Protection Impact Assessment (DPIA) and determining whether processing is "likely to result in a high risk" for the purposes of Regulation (EU) 2016/679 (WP 248, rev.01, October 4, 2017), p. 12.

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pay slip. The Contentious Chamber notes that the second respondent is active through 35 agencies, primarily located in the Brussels region. Regarding the duration of the violation, the Contentious Chamber takes note of the fact that the conclusions mention that the second respondent was designated as a real estate agent "during the month of October 2022." Given that the second respondent claims to have deleted the personal data within 4 days following the complainant's request for deletion, this constitutes a violation of rather limited duration. The Contentious Chamber notes that in this case, there is no question of large-scale data processing. Considering the scope and rather limited duration of the contested processing, the Contentious Chamber assigns less weight to these factors. In its response to the sanction form, the second respondent agrees with this finding.

96. Negligent or deliberate nature of the violation (Article 83.2.b of the GDPR) — The Contentious Chamber recalls that, in general, "intent" encompasses both knowledge and will in relation to the characteristics of an offense, while the terms "not deliberately" mean that there was no intention to cause the violation, even though the data controller or the processor violated the duty of care prescribed by the legislation.³⁵ In other words, two cumulative elements are necessary for a violation to be considered intentional, namely knowledge of the violation and will in relation to that act.³⁶ 97.

Regarding the intentional component, the Contentious Chamber also recalls that the Court of Justice has set a high threshold for an act to be considered intentional.³⁷ The Court of Justice has thus determined in criminal cases that it is a question of "serious negligence" rather than "intent" when "the responsible person characteristically violates the duty of care that they should have and could have respected given their qualities, knowledge, skills, and individual situation."³⁸ Even if one can expect a company whose main activities involve the processing of personal data to take sufficient measures to protect personal data and fully recognize its obligations in this regard, such a qualified violation does not necessarily demonstrate that it is a deliberate violation.³⁹

35 Article 29 Working Party on Data Protection - Guidelines on the application and setting of administrative fines for the purposes of Regulation (EU) 2016/679 (WP 253, October 3, 2017), p. 12.

36 See also EDPB - Binding Decision 1/2023 on the dispute submitted by the Irish SA on data transfers by Meta Platforms Ireland Ltd (Facebook), point 103, available at: https://edpb.europa.eu/system/files/2023-05/edpb_bindingdecision_202301_ie_sa_facebooktransfers_en.pdf.

37 See, inter alia, CJEU, December 5, 2023, Deutsche Wohnen, C807/21, ECLI:EU:C:2023:950, points 74 et seq. and the case law cited therein.

38 CJEU, June 3, 2008, C-308/06, Intertanko et al. (ECLI:EU:C:2008:312), point 77.

39 See also EDPB – Binding Decision 2/2022 on the dispute arisen on the draft decision of the Irish Supervisory Authority.

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98. In other words, this means that a data controller may also be sanctioned with an administrative fine under Article 83 of the GDPR for behavior falling within the scope of the GDPR, when this data controller could not have been unaware that their behavior constituted a violation, regardless of

whether they were aware or not that they were violating the provisions of the GDPR. The second defendant argues in this regard that it was a regrettable human error such that there can be no intent. According to the Contentious Chamber, there is no — manifest — intent on the part of the second defendant to intentionally violate Article 5.1.a), b), and c) in conjunction with Article 6 of the GDPR combined with Article 14.1.c) and 14.2.b) of the GDPR by using an inappropriate legal basis for processing, and there is also no question of gross negligence. However, the Contentious Chamber notes that the second defendant processed this personal data in the context of their professional activities, of which the processing of personal data constitutes a significant related activity. The Contentious Chamber therefore stated in its sanction form that the second defendant should have been aware that the processing in question was unlawful processing. Consequently, the Contentious Chamber gave more weight to this factor. In their response to the sanction form, the second defendant requests the Contentious Chamber to reconsider the degree of negligence that may be attributed, emphasizing that the processing is due to a human error in an isolated case, and that these circumstances can certainly lead to a lesser weighting than the rather subjective fact of whether this processing constitutes or not a "significant related activity." The Contentious Chamber finds that there is no indication of the existence of such prior incidents, so that a human error leading to the established violation is not improbable. In the directive, the EDPB indicates that a human error may reveal negligence and that "depending on the circumstances of the case, the supervisory authority may also attach importance to the degree of negligence. At best, negligence may be deemed neutral." Given that the processing in question results from a human error and that nothing indicates that these processes occur structurally on the one hand, and given that great caution is warranted in the case of the use of sensitive data on the other hand, the Contentious Chamber decides to attribute a medium weight to this violation.

99. Categories of personal data to which the violation relates (Article 83.2.g) of the GDPR) — The processing in question concerns the provision of the entirety of the complainant's payslip. The nature of the personal data

regarding Meta Platforms Ireland Limited (Instagram) under Article 65(1)(a) GDPR, July 28, 2022, point 204.

40 CJEU, December 5, 2023, C-807/21, Deutsche Wohnen SE v. Staatsanwaltschaft Berlin (ECLI:EU:C:2023:950), point 76.

See also CJEU, June 18, 2013, C-681/11, Schenker & Co. et al. (ECLI:EU:C:2013:404), point 37; CJEU, March 25, 2021, Lundbeck v. Commission, C-591/16 P (ECLI:EU:C:2021:243), point 156; and CJEU March 25, 2021, C-601/16 P, Arrow Group and Arrow Generics v. Commission (ECLI:EU:C:2021:244), point 97.

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treated therefore encompasses several categories, including identification data, financial information, the national registry number, and the civil status of the complainant. Regarding national identification numbers, the EDPB asserts that these are personal data that do not fall under the application of Articles 9 and 10 of the GDPR, but whose dissemination would still cause immediate harm or suffering to the individual concerned.⁴¹ Based on the above, the Contentious Chamber considers that the personal data in question nonetheless belong to categories of personal data of a nature such that they could infringe upon the privacy of the individuals concerned, and which they would not normally reasonably expect to be collected indirectly by third parties and subsequently processed by them. Given the categories of personal data in question, the Contentious Chamber places greater weight on this factor.

iii)

Company turnover

100. The Contentious Chamber specifies in this regard that at the time of sending the sanction form dated February 20, 2024, it did not yet have the turnover figures for the year 2023 and therefore had to take into account the turnover figures for the year 2022. Since the turnover was not included in the annual accounts for 2022⁴², the Contentious Chamber must use the gross margin for 2022 as an alternative. This gross margin amounts to 1,192,111 EUR. In its response to the sanction form, the

defendant provides the provisional figures for the 2023 financial year indicating that the gross margin for the year 2023 amounts to 160,024 EUR.

iv)

Conclusion regarding the starting amount

a. Theoretical starting amount (based on the severity of the violation)

101. Under Article 83.5 of the GDPR, the fine amounts to a maximum of 20 million euros or, in the case of a company, up to 4% of the total global annual turnover of the previous financial year, with the higher amount being retained, which is not the case here. The maximum legal amount is therefore 20 million euros.

102. Based on the assessment of the criteria outlined above, the Contentious Chamber must determine whether the violation is considered to be of low, medium, or high severity. These categories do not detract from the question of whether a fine can be imposed or not.⁴³

103. This assessment is not a mathematical calculation in which the aforementioned factors are considered separately, but rather a thorough evaluation of the circumstances.

41 EDPB - Guidelines 04/2022 on the calculation of administrative fines under the GDPR, (V2.1, May 24, 2023), p. 22, https://edpb.europa.eu/system/files/2024-01/edpb_guidelines_042022_calculationofadministrativefines_fr_0.pdf.

42 Consulted via the website of the National Bank of Belgium.

43 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (V2.1, May 24, 2023), p. 23, https://edpb.europa.eu/system/files/2024-01/edpb_guidelines_042022_calculationofadministrativefines_fr_0.pdf.

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concrete to the case, all the aforementioned factors being mutually linked. This is why, when evaluating the severity of the violation, the violation must be considered as a whole⁴⁴.

- When calculating the administrative fine to be imposed for violations of low severity, the supervisory authority sets a starting amount for subsequent calculation between 0 and 10% of the applicable legal maximum.
- When calculating the administrative fine to be imposed for violations of medium severity, the supervisory authority sets a starting amount for subsequent calculation between 10 and 20% of the applicable legal maximum.
- When calculating the administrative fine to be imposed for violations of high severity, the supervisory authority sets a starting amount for subsequent calculation between 20 and 100% of the applicable legal maximum⁴⁵.

104. As a general rule, the more severe the violation within the relevant category, the higher the starting amount is likely to be⁴⁶.

105. The Contentious Chamber found that there was a violation of Article 5.1.a), b) and c) of the GDPR in conjunction with Article 6.1 of the GDPR, in combination with Articles 14.1.c) and 14.2.b) of the GDPR, which are included in the violations of Article 83.5 of the GDPR. Subsequently, the Contentious Chamber conducted an analysis of the nature of the violation, its purpose, the scope and duration of the processing, as well as the categories of personal data processed and the negligent nature of the violation⁴⁷.

106. Based on the previous assessments of the aforementioned circumstances, the Contentious Chamber considers that the violation under Article 83.5 of the GDPR is of medium severity. In this regard, the Contentious Chamber particularly takes into account the sensitive nature of the personal data and the professional quality of the second defendant on one hand, and the limited scope and duration on the other hand. Therefore, the starting amount for the subsequent calculation must be set at an amount between 10% and 20% of the applicable legal maximum. The Contentious Chamber decides to set a theoretical starting amount of 3 million euros, which is 15% of the applicable legal maximum amount of 20 million euros (Article 83.5 of the GDPR).

b. Adjustment of the starting amount based on the size of the company

107. The Contentious Chamber must then verify whether the starting amount should be adjusted based on the size of the company. This adjustment is indeed only valid for the

44EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR V2.1, May 24, 2023, p. 23,

https://edpb.europa.eu/system/files/2024-01/edpb_guidelines_042022_calculationofadministrativefines_fr_0.pdf.

45 EDPB - Guidelines 04/2022 on the calculation of administrative fines under the GDPR (V2.1, May 24, 2023), p. 23.

46 EDPB - Guidelines 04/2022 on the calculation of administrative fines under the GDPR (V2.1, May 24, 2023), p. 23.

47 See points 95 to 102 inclusive of this decision.

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enterprises to which the static legal limit applies, namely when the enterprise has achieved a turnover of less than 500 million euros in the previous financial year. Since this is the case here, the fine must be adjusted according to the static legal limit.

108. The Disciplinary Chamber has already explained that the violation identified falls under Article 83.5 of the GDPR and is of medium severity. For violations mentioned in Article 83.5 of the GDPR, of medium severity, applied to an enterprise with a turnover of less than 2 million euros, the fine amounts to 0.2 to 0.4% of the starting amount, with the fine not being less than 4,000 euros nor exceeding 16,000 euros⁴⁸.

109. Considering the minimum and maximum amounts set out in the guidelines by level, the relevant gross margin of the data controller, and the factors outlined in this part III.3.2 of this decision, the Disciplinary Chamber decides to reduce the final starting amount of the identified violation (falling under Article 83.5 of the GDPR with medium severity) to an adjusted starting amount of 7,500 euros, which is 0.25% of the theoretical starting amount of 3 million euros, instead of the adjusted starting amount of 9,000 euros in the sanction form, which is 0.30% of the theoretical starting amount of 3 million euros.

III.3.3. Step 3: Assessment of aggravating and mitigating circumstances

i)

Assessment of any aggravating or mitigating circumstances

110. As mentioned in the guidelines, it is then necessary to assess whether, in the circumstances of the case, there is a need to set a fine that is higher or lower than the starting amount defined in this regard. The circumstances to be taken into account are set out in Article 83, second paragraph, ab initio and points a) to k) inclusive of the GDPR. Each of the circumstances mentioned in this provision can only be assessed once⁴⁹. In the previous step, account has already been taken of the nature, significance, and duration of the violation⁵⁰, the intentional or negligent nature of the violation⁵¹, and the categories of personal data⁵². Therefore, the remaining parts are c) to f) inclusive and h) to k) inclusive.

111. Measures taken to mitigate the damage suffered by the data subjects (Article 83.2.c) of the GDPR) – As indicated in the WP 25353 guidelines, data controllers and processors are already required "to implement the

48 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (V2.1, May 24, 2023), p. 52.

49 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (V2.1, May 24, 2023), p. 23.

50 See points 95-98 of this decision.

51 See points 99-101 of this decision.

52 See point 102 of this decision.

53 Article 29 Working Party on Data Protection – Guidelines on the application and setting of administrative fines for the purposes of Regulation (EU) 2016/679 (October 3, 2017).

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technical and organizational measures to ensure an appropriate level of security relative to the risk, to conduct impact assessments regarding data protection, and to mitigate risks to the rights and freedoms of individuals resulting from the processing of personal data." In the event of a breach, the

data controller or the processor must therefore "do everything in their power to reduce the consequences of the breach for the affected individual(s)." The Contentious Chamber notes that the second defendant does not indicate whether they have taken measures or what measures they would have taken to mitigate the damage suffered by the affected individual. This circumstance has thus been considered neutral in the sanction form. The second defendant argues in their response to the sanction form that the personal data in question was deleted within four days of the request made by the affected individual, so that the breach could no longer recur. In accordance with the guidelines⁵⁴, the Contentious Chamber finds that the measures taken were effective and were implemented within a sufficiently short timeframe following the complainant's request. The Contentious Chamber therefore considers these measures as a mitigating circumstance.

112. Relevant previous breach committed by the data controller or the processor (Article 83.2.e of the GDPR) – The Contentious Chamber takes into account the fact that to date, it has not been seized of any other proceedings against the second defendant. Referring to the guidelines, the Contentious Chamber indicated in its sanction form that this factor should be considered neutral. In their response to the sanction form, the second defendant emphasizes that there is no evidence of relevant previous breaches of the GDPR or prior proceedings with the Data Protection Authority (DPA). The Contentious Chamber refers to the guidelines which state the following: "The absence of previous breaches cannot, however, be considered a mitigating factor, given that compliance with the GDPR is the norm. If no breach has been previously committed, this factor may be deemed neutral."⁵⁵ Therefore, this factor should be considered neutral.

113. The manner in which the supervisory authority became aware of the breach (Article 83.2.h) – Since the Contentious Chamber became aware of the breach following a complaint, this element is deemed neutral in accordance with the guidelines⁵⁶.

114. The degree of cooperation established with the supervisory authority in order to remedy the breach and mitigate any potential negative effects (Article 83.2.f of the GDPR) — The Contentious Chamber notes that the second defendant has been cooperative towards it. In its sanction form, the Contentious Chamber indicated, in accordance with the

54 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (V2.1, May 24, 2023), p. 29.

55 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (V2.1, May 24, 2023), p. 33.

56 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (V2.1, May 24, 2023), p. 33.

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guidelines, it considered the ordinary obligation of cooperation as being neutral given the general obligation of cooperation set out in Article 31 of the GDPR. In his response to the sanction form, the second defendant argues that in this procedure, he cooperated in good faith with the DPA. The Disciplinary Chamber notes that the second defendant indeed provided his cooperation in the procedure and refers to the guidelines which state that this cooperation is a general obligation incumbent on the data controller under Article 31 of the GDPR and that a failure to cooperate may lead to the imposition of the fine referred to in Article 83.4.a) of the GDPR. It should therefore be kept in mind that the ordinary obligation of cooperation is binding and must thus be considered as neutral (and not as a mitigating factor)⁵⁷.

115. Other mitigating or aggravating circumstances – The Disciplinary Chamber stated in its sanction form that other circumstances do not apply in this case because the circumstances referred to do not arise in this instance. In his response to the sanction form, the second defendant emphasizes that Article 83.2.k) of the GDPR allows the Disciplinary Chamber to take into account any other circumstance of the case presenting an aggravating or mitigating factor. In this context, the second defendant indicates that he derived no direct profit from the processing of this personal data and that the only indirect profit is the commission received. The Disciplinary Chamber notes that it is not clearly known whether the disputed processing, namely the publication of the payslip, led the buyer of the real estate to proceed with the purchase, given the solvency evidenced by the payslip. The Disciplinary

Chamber therefore concludes that this circumstance should be considered as neutral.

ii)

Influence on the amount of the fine

116. In point 114, the concrete starting amount was set at 7,500 euros. In the following points, any potential mitigating or aggravating circumstances have been examined. The Disciplinary Chamber has determined that the circumstance as described in Article 83.2.c) of the GDPR, namely the measures taken to mitigate the damage suffered by the affected individuals, can be taken into account as a mitigating factor. The other circumstances that may be considered should be regarded as neutral. Therefore, the fine is set at 6,300 euros.

III.3.4. Step 4: Control of exceeding maximum amounts

117. As already stated, a maximum fine of 4% of the global turnover of the company applies to the identified violation. Given the gross margin of the second defendant (160,024 euros), the legal maximum fine to be imposed amounts to 6,400.96 euros.

57 EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR (V2.1, May 24, 2023), p. 33.

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The amount of the fine set for the identified violations is set at 6,300 euros. This amount is below the legal maximum, so there is no exceeding.

III.3.5. Step 5: Assessment of effectiveness, proportionality, and deterrence

118. Under Article 83.5, ab initio and under b) of the GDPR, the Disciplinary Chamber may impose an administrative fine for the violations described above. As described in the guidelines, the imposition of a fine can be considered effective if it achieves the objectives for which it was imposed. These objectives may be, on the one hand, the sanctioning of unlawful behaviors and, on the other hand, the promotion of compliance with the applicable regulations. Regarding the deterrent effect, the Disciplinary Chamber states that the administrative fine aims to prevent recidivism on the part of the second defendant by encouraging him to take possible internal measures or to adopt internal procedures to limit the risk of such human errors in the future as much as possible. Furthermore, the deterrent effect also applies to other data controllers in order to evaluate internal operations and, if necessary, to take appropriate measures to avoid similar violations.⁵⁸ Moreover, the Disciplinary Chamber considers that the administrative fine is proportionate given the nature, severity, and duration of the violation, and considering the other factors of Article 83.2 of the GDPR as assessed in points III.3.2 and III.3.3 of this decision. The Disciplinary Chamber emphasizes here the short duration of the violation and its relatively limited scope, also taking into account the gross margin of the second defendant. The Disciplinary Chamber therefore concludes that both objectives have been achieved and that the administrative fine to be imposed is thus deterrent and proportionate.

IV. Publication of the decision

119. Given the importance of transparency regarding the decision-making process of the Disciplinary Chamber, this decision is published on the website of the Data Protection Authority. However, it is not necessary for this purpose that the identifying data of the parties be communicated directly.

⁵⁸ The deterrent effect must prevent both the second defendant and others from committing the same violation in the future, see European Data Protection Board (EDPB), Guidelines 04/2022 on the calculation of administrative fines under the GDPR (V2.1, May 24, 2023), point 142.